

The action against the state for the acts of public ships would be very few even if the law gave the right of such action to individuals. Those who take charge of the public ships are well qualified and able. The naval officer, for instance, enters the naval service after having passed many severe examinations, and is promoted to responsible positions only after many years of experience. The discipline on board men-of-war is fully secured and maintained by Crown regulations and Admiralty instructions, which are enacted from time to time, with a view to maintaining the discipline in the navy in the way thought most desirable. The men who serve under the officers are very obedient, and are, perhaps, the most satisfactory class of employés that exist. We can, therefore, say without hesitation that the cases in which the state is proceeded against for negligence of those servants of its own will be very few; and that though the law gives a right of action in those cases to the injured individual it would not involve the state in perpetual embarrassment.

If someone says, against this presumption, that the liability of the state would surely involve it in endless embarrassment, does it not amount either to saying that the knowledge, experience, and ability of naval and other public officers cannot be relied upon, or to asserting the inefficiency and incompetence of the government to do justice to its people? We do not think that the government of civilised nations would rely on such illogical reasoning to defend its immunity from liability.